



EVL1 — Introduction to Evidence and Proof

Module 4 — Estoppel

Lesson 2: Types of Estoppel

Student Lesson Notes

ESTOPPEL BY CONDUCT

Estoppel by Conduct: Also called *estoppel in pais*. Arises from the acts, statements, or omissions of a party outside formal court proceedings or formal documents. It is the broadest and most commonly litigated form of estoppel — directly addressed by Section 114 of the Evidence Act Cap. 8.

How It Arises

Estoppel by conduct arises when a person makes a representation of fact — not a promise or opinion, but a representation of existing fact — and another person relies on that representation and suffers detriment.

- Express words: I confirm the debt has been paid.
- Conduct over time: a creditor who accepts reduced payments over many months without objection may represent by their conduct that they have agreed to the reduced amount.
- Silence: a party who stands by and watches another act on a false belief that the silent party could have corrected may be estopped from later denying the truth of that belief — where there was a duty to speak.

Kimani v Gikanga (1965) EA 735, *East African Court of Appeal — persuasive authority in Uganda* — A party's conduct over time can create an estoppel preventing them from later asserting rights inconsistent with the position their conduct has represented.

Estoppel by Conduct in Ugandan Land Cases

Estoppel by conduct arises with great frequency in Ugandan land disputes. Where a landowner has allowed a person to cultivate and develop land for many years, accepted payments, never objected to developments, and participated in community ceremonies treating the cultivator as having rights — that landowner may be estopped from later denying the cultivator's rights.

Limits of Estoppel by Conduct

- Cannot override a clear provision of statute — cannot substitute for statutory requirements.
- Requires a representation of existing fact not merely a promise about future conduct.
- Cannot create a cause of action where none otherwise exists — it is a shield not a sword.

THE SHIELD NOT SWORD PRINCIPLE: *Estoppel is used DEFENSIVELY — to prevent the other side from asserting an inconsistent position. A party CANNOT use estoppel as the basis of an independent legal claim. In the landlord scenario, the tenant uses estoppel as a shield to resist the landlord's claim for UGX 600,000 — not as a sword to sue the landlord.*

PROMISSORY ESTOPPEL

The Problem Promissory Estoppel Solves

Estoppel by conduct requires a representation of existing fact. A person who simply promises to do something in the future has not represented any existing fact — they have made a promise. Under classical contract law, a promise is only enforceable if supported by consideration. This created a potential injustice — a party could make a clear promise that the other party relied on seriously, then withdraw it claiming no consideration.

Promissory Estoppel: Prevents a party from going back on a clear promise that the other party has relied on to their detriment, even if that promise is not supported by consideration and would not be enforceable as a contract.

Central London Property Trust Ltd v High Trees House Ltd [1947] KB 130, *per Lord Denning — persuasive Commonwealth authority in Uganda* — A landlord who agreed to accept half rent during wartime conditions was estopped from claiming the full rent for the wartime period even though the arrangement lacked consideration. Foundation of the modern promissory estoppel doctrine.

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Four Elements

- 1. A clear and unambiguous promise to waive or vary strict legal rights.
- 2. The promise was intended to be acted upon.
- 3. The promisee actually relied on the promise and altered their position.
- 4. It would be inequitable — unfair — for the promisor to go back on the promise given the reliance.

Important Limitations

- Shield not sword — cannot be used as the basis of a standalone cause of action.
- Generally SUSPENSORY not EXTINCTIVE — suspends the promisor's legal rights during the period of reliance but does not permanently extinguish them. Once circumstances change, the promisor may be able to resume asserting their strict legal rights.
- Requires inequity — must be shown that it would be unfair to allow the promisor to resile from the promise.

SUSPENSORY NOT EXTINCTIVE: In the High Trees case, the landlord could resume claiming full rent once wartime conditions ended. Promissory estoppel suspended the rights during reliance — it did not permanently destroy them.

ESTOPPEL IN UGANDAN COURTS

Most Common Contexts

- Land disputes — long-standing informal arrangements create representations over time.
- Commercial contract matters — representations about payment terms, waivers of rights.
- Banking and finance cases — representations by financial institutions about loan enforcement.
- Employment disputes — representations about terms of employment.

How to Raise Estoppel in Court

- Step 1: Identify the form of estoppel — record, deed, conduct, or promissory.
- Step 2: Establish each element clearly on the evidence. For Section 114 conduct estoppel: representation, reliance, and detriment.
- Step 3: Cite the correct authority — Section 114 Evidence Act Cap. 8; Stanbic Bank Uganda Ltd v Uganda Crocs Ltd Civil Appeal No. 4 of 2004; Kimani v Gikanga (1965) EA 735 as persuasive authority; High Trees case for promissory estoppel clearly labelled persuasive.
- Step 4: Frame the argument as a defence — estoppel is a shield not a sword.

Court Hierarchy and Estoppel by Record

Estoppel by record created by a decision of the Supreme Court of Uganda binds all lower courts and all parties to those proceedings. Estoppel by record created by the Court of Appeal binds the High Court and lower courts. A High Court decision creates estoppel binding on the parties in all subordinate courts.

Stanbic Bank Uganda Ltd v Uganda Crocs Ltd Civil Appeal No. 4 of 2004 — Ugandan Court of Appeal requiring clear establishment of all three elements before estoppel will be found — the court does not apply estoppel loosely.

LESSON SUMMARY — KEY POINTS

- ✓ Estoppel by conduct (Section 114 Evidence Act Cap. 8): arises from acts, statements, or omissions — broadest form, most commonly litigated
- ✓ Conduct estoppel can arise from express words, conduct over time, or silence where there was a duty to speak
- ✓ *Kimani v Gikanga* (1965) EA 735 — persuasive East African authority on conduct estoppel
- ✓ The shield not sword principle: estoppel is used defensively — it cannot be the basis of a standalone cause of action
- ✓ Promissory estoppel: prevents going back on a clear promise relied on to the promisee's detriment even without consideration
- ✓ *High Trees case* [1947] KB 130 — persuasive Commonwealth authority on promissory estoppel
- ✓ Promissory estoppel is suspensory not extinctive — rights suspended during reliance but not permanently destroyed
- ✓ *Stanbic Bank Uganda Ltd v Uganda Crocs Ltd Civil Appeal No. 4 of 2004* — all three elements must be clearly established

SELF-TEST QUESTIONS

Attempt these before checking the platform practice quiz.

1. What is estoppel by conduct and how does it differ from estoppel by deed?
2. Explain the shield not sword principle with a Ugandan example.
3. State the four elements required for promissory estoppel to arise.
4. What does it mean to say that promissory estoppel is suspensory rather than extinctive?
5. State the principle from *Stanbic Bank Uganda Ltd v Uganda Crocs Ltd Civil Appeal No. 4 of 2004* regarding the application of estoppel in Uganda.